Elapso proxime anno

Benedict XIV · 1751-02-20 · English (M'Ghee, 1839)

OF THE DRAGGING FORTH OF CRIMINALS, RELATING TO THE OFFICE OF THE HOLY INQUISITION, FROM PLACES OF PROTECTION TO WHICH THEY MAY HAVE FLED.

An Encyclical Letter to the Inquisitors, deputed against heretical pravity.

BENEDICT XIV., POPE.

Beloved Son, Health and Apostolical Benediction.

At the close of the last year, 1750, an Apostolical Constitution was published by us, given in the Ides of March the beginning of which is "Officii Nostri," and which treats of the local immunity of churches. In that, we, adhering to the constitutions of our predecessors, Gregory XIV, Benedict XIII., and Clement XII, having removed certain cavils and subterfuges, by which the execution of them was impeded, decreed and appointed that he who was accused of an excepted crime, if at any time he should fly to a place of protection, ought to be dragged forth from it, AS OFTEN AS PROOF SUFFICIENT FOR THE TORTURE COULD BE HAD, which should prove his crime; and that moreover he should not be dragged forth unless by the authority of the Bishop and with the intervention of some ecclesiastical person, to be deputed by the same Bishop; and at length that when he was handed over to the secular power, censures were to be declared to be incurred by the same, unless the person who had been dragged forth was to be restored to the church as often as in the progress of his cause the proofs had been cleared off on which the accused was charged with the perpetration of the crime.

But because our before-mentioned predecessors had decreed that the extraction from a place of protection should not be made, except by the Bishops alone, or by Prelates who were their superiors, excluding inferiors, although they were ordinaries and of no diocese, and those having a seperate territory, in which case the extraction of the culprit should devolve on the neighbouring Bishop, the same has been likewise decreed by us in our aforecited constitution.

"Section 1.—By adhering also to those regulations which have been decreed in the constitution of Gregory XIV., by which the rule and regulation of local immunity is prescribed. The crime of heresy, as you well know, is an excepted crime, and he who is accused of it cannot enjoy the refuge of a church. But, since in the congregation of the holy inquisition, held before us according to custom, on the 28th of January of this year, 1751, a doubt was raised what rule was to be observed, and what mode to be adopted, as often as a person accused of heresy was to be dragged out of a church to which he had fled, lest he might be taken to prison, whether when he had escaped from chains in which he was held, or from the gallies, or , any other place to which he had been condemned, either for imprisonment or labour, we, who composed the aforesaid constitution in the preceding year, have reserved to ourselves to pronounce upon this matter, which we now intend to set forth by those which we subjoin.

"Section 2.—Either the question is as to the crime of heresy, which comes chiefly under the cognizance of the Holy Inquisition, or of other excepted crimes which do not enjoy the protection of a sanctuary, or of other crimes which are not excepted, and which do enjoy that protection, but therefore belong to that tribunal, because they are committed by some of those who, as being subject to the jurisdiction of that tribunal, ought to undergo its judgment.

"Section 3.—If the crime of heresy is treated of—since, by our predecessor, John XXI., who is called XXII, in his constitution beginning "Ex parte vestra," in the Roman Bullarium, vol. I., it has been already decreed "that heretics, or those suspected of heresy, also Jews, who, when they had been converted to the Catholic Faith, thence fell into apostasy, if they fly to a church, ought to be immediately dragged out from thence by the inquisitor." It is by no means our intention to derogate from this aforesaid constitution; on the contrary, it is our will that the same shall be observed, by attending to and following however that method which we now subjoin, namely, that the Inquisitor, as often as a criminal of this description is to be dragged out of a church, should use all diligence that this should be done with all due reverence for the House of God. And, since it cannot happen that before dragging him forth, the proofs which are had against the criminal can be commuicated to the Bishop, since the law of the secret by no means allows it, and since where, even if it could be done, it would be wholly useless, since it is known that the sacred tribunal of the inquisition by no means proceeds to a capture, unless an almost complete proof of the crime has preceded. He should not, however, omit

this, that either before or after the capture he should certify the Bishop of it, as well on account of the reverence which is due to his dignity, as that as far as possible, that may be carried into effect which has been decreed in the constitutions of Gregory, Benedict, Clement, and ours, which also is decreed thus by us, on this account, because that we have seen formerly in the congregation of the holy office which was held before our predecessor Urban VIII, on the 10th of June, 1638, the case being proposed and the doubt discussed; "Whether a criminal, being charged with heresy, flying to a church, ought to be dragged out by the Bishop or the Inquisitor? the Pontiff having heard the votes, answered 'that the criminal can be dragged out by the Inquisitor, the Bishop being certified of it either before or after."

"Section 4.—But when the question is of other excepted crimes, which nevertheless are by no means belonging to heresy, and still more if it is of those which are not counted among excepted crimes although they may belong to the cognizance of the sacred tribunal, either because they are committed by some person subject to the jurisdiction of the same, or under any other name whatsoever; we declare that those who are accused of crimes which are not at all excepted, ought to enjoy the immunity ; but, as often as those accused of cases excepted, but who are not accused nevertheless of heresy, ought to be dragged forth from a church, all those things ought to be exactly observed, as well those which are decreed in our constitution, as those which have been decreed in the other preceding constitutions, namely, that the proofs which are sufficient for the torture ought to be communicated to the Bishop, since the law of the secret by no means prevents this; besides that the criminal ought not to be dragged forth without the authority of the Bishop and the intervention of some ecclesiastical person deputed by him, and that all other things are to be observed which are decreed in the aforesaid constitutions.

"Section 5.—What has been said hitherto is to be observed even in respect to those who fly from prisons or from the galleys, or from any place of confinement, and betake themselves to the asylum of a church or any sanctuary; for if they are accused or condemned of the crime of heresy, they are to be dragged out by the inquisitor, but so that the bishop be certified of it either before or after. But, if they are accused or condemned of any other excepted crime, but not of the crime of heresy, or for any other crime which is not excepted, as to the first let them be dragged forth by the authority of the Bishop and the intervention of an ecclesiastical person deputed by the Bishop. As to the second, let them be suffered to remain in the asylum to which they have fled, although they have fled from the galleys with their chains, provided they are free from the power of the aforesaid galleys or of the other ministers of justice; unless perhaps the Bishop may have an indult from the Apostolic See that he may be able to drag fugitives from the galleys out of churches, when in this case he may recur to the same for recovering the fugitive, or even to the Apostolic See, if the Bishop should want an indult of this sort, since the Holy See itself, in particular cases, as often as the crime requires it, would by no means refuse the Bishops to impart to them authority of dragging forth from churches those who have fled from prisons and galleys, although not accused of an excepted crime. These things we have to signify to the inquisitors, and meantime we impart to them our apostolical benediction.

"Given at Rome, at St. Mary Major, on the 20th of February, 1751, in the eleventh year of our Pontificate."

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